

Franciscus Dylan Rosario,
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Plaintiff, In Pro Per

ELECTRONICALLY
FILED
Superior Court of California,
County of San Francisco

05/26/2026
Clerk of the Court
BY: JEFFREY FLORES
Deputy Clerk

**SUPERIOR COURT OF THE STATE OF CALIFORNIA
COUNTY OF SAN FRANCISCO**

Franciscus Dylan Rosario,
PLAINTIFF,

v.

CSAA Insurance Exchange;
and DOES 1 through 50, inclusive;

DEFENDANTS

Case No.: CGC-25-631802

REQUEST FOR JUDICIAL NOTICE

(Evid. Code § 451–453)

Dept.: 610

Date: June 24, 2026

**PLAINTIFF’S REQUEST FOR JUDICIAL NOTICE IN SUPPORT OF
MOTION FOR SANCTIONS UNDER CODE OF CIVIL PROCEDURE
SECTION 128.7**

Case: Rosario v. CSAA Insurance Exchange (CGC-25-631802) **Department:** 302 **Judge:** Hon. Joseph
M. Quinn **Hearing date:** June 24, 2026, 9:00 a.m., Dept. 302 **Filing date:** May 21, 2026 **Filed**
by: Plaintiff Dylan Franciscus Rosario, Self-represented

I. REQUEST UNDER EVIDENCE CODE SECTION 452(D)

Pursuant to Evidence Code section 452, subdivision (d), Plaintiff Dylan Franciscus Rosario respectfully requests that this Court take judicial notice of the following docketed records of this action and serving-counsel correspondence served in connection with this action, attached as **Ex-**

Exhibits A through D:

Exhibit A. Plaintiff's April 27, 2026 supplemental safe-harbor letter to defense counsel of record (Porter Scott, A Professional Corporation), captioned "Supplement and reiteration of plaintiff's prior April 22, 2026 Code of Civil Procedure section 128.7(c)(1) safe-harbor correspondence; identification of specific certifications requiring withdrawal or correction; case-isolated record for CGC-25-631802 only; coordination with the same-day court-facing packet; and express demand for acknowledgment to the tribunal of plaintiff's April 25, 2026 (Saturday) comprehensive merits meet-and-confer letter," served by electronic mail pursuant to the parties' stipulated e-service in this action.

Exhibit B. Plaintiff's CCP section 128.7(c)(1) safe-harbor notice served during the window of **May 5 to May 8, 2026** (the "May 5 to 8 Safe-Harbor Notice"), addressed to defense counsel of record at Porter Scott, A Professional Corporation, identifying by name (i) the certifications in Defendant's Memorandum of Points and Authorities in Support of Special Motion to Strike pursuant to CCP section 425.16 (filed April 9, 2026) and Defendant's Opposition to Plaintiff's Motion for Leave to File a Second Amended Complaint (filed April 23, 2026) requiring withdrawal or appropriate correction; and (ii) the Reply Declaration of Tyler J. O'Connell in Support of Special Motion to Strike, filed on or about May 6, 2026, and the duplicative-title O'Connell declaration filed on or about May 8, 2026. (ROA: Transaction ID TBD; see clerk register-of-actions for the filed POS-050 associated with the safe-harbor service window.)

Exhibit C. The **Introduction page** of Defendant's Opposition to Plaintiff's Motion for Leave to File a Second Amended Complaint ("MFL-SAC Opposition"), filed April 23, 2026 in CGC-25-631802, containing the verbatim representation: "Plaintiff cites no authority to support the proposition that he can file his Motion for Leave to Amend, as no such authority exists to support his motion." (ROA: Transaction ID TBD; defense MFL-SAC Opposition filed April 23, 2026; verify Transaction ID via clerk register-of-actions.)

Exhibit D. The **Reply Declaration of Tyler J. O'Connell in Support of Special Motion to Strike**, filed on or about **May 6, 2026** in CGC-25-631802, including paragraph 6 and Exhibit A to that declaration; and to the extent available, the duplicative-title declaration of Tyler J. O'Connell

1 filed on or about **May 8, 2026** in the same Anti-SLAPP stack. (Per the docketed reply declaration
2 filed May 6, 2026; verify Transaction ID; the May 8, 2026 second declaration likewise to be
3 verified via clerk register-of-actions.) These two declarations are the immediate subjects of (i)
4 Plaintiff's Motion to Strike May 6, 2026 Reply Declaration of Tyler J. O'Connell and Exhibit
5 A, **Transaction ID 79429443**, filed May 8, 2026, and (ii) Plaintiff's contemporaneously filed
6 Evidentiary Objections, also filed May 8, 2026.

7 **II. AUTHORITY FOR JUDICIAL NOTICE**

8 Each item is a "record[] of (1) any court of this state" within the meaning of Evidence Code
9 section 452, subdivision (d), or is serving-counsel correspondence whose existence and content
10 can be determined by reference to sources of reasonably indisputable accuracy under Evidence
11 Code section 452, subdivision (h), namely Plaintiff's own contemporaneously retained service
12 inbox under the parties' stipulated e-service in this action.

13 Plaintiff requests judicial notice of the **existence, filing or transmission, and content** of each item
14 identified above. Plaintiff does **not** request judicial notice of the truth of any factual or legal con-
15 tention within Exhibit C or Exhibit D; judicial notice is requested as to the existence and content
16 of those documents only. Plaintiff requests judicial notice of Exhibit A and Exhibit B for the ex-
17 istence, transmission, and operative passage content of the serving-counsel correspondence chain
18 that comprises plaintiff's safe-harbor compliance under CCP section 128.7(c)(1).

19 Procedural authority for the June 24, 2026 hearing line: This Court, by minute order entered May
20 13, 2026 (Hon. Joseph M. Quinn, Dept. 302, M. Goodman clerk), continued the consolidated mo-
21 tion calendar to June 24, 2026, 9:00 a.m., Department 302, and directed: "All parties immediately
22 to provide courtesy copies of their filings per SF Local Rule 2.7B with a cover letter reflecting the
23 new hearing date." Following the parties' stipulation, the Court further ordered all then-pending
24 Department 302 matters in this action consolidated into the single June 24, 2026 line. This Request
25 is tendered in conformity with that order, and is associated with the **Motion for Sanctions under**
26 **Code of Civil Procedure Section 128.7** filed concurrently herewith.

III. RELEVANCE

The exhibits are relevant for the following purposes:

(a) Exhibit A and Exhibit B. To establish strict compliance with the CCP section 128.7(c)(1) safe-harbor procedure under Day v. Collingwood (2006) 144 Cal.App.4th 1116, 1131 to 1132. The April 27, 2026 supplemental letter and the May 5 to 8 Safe-Harbor Notice identify, by name, the certifications plaintiff challenges and the controlling adverse authorities that defense counsel did not disclose. They establish the date of service from which the 21-day calculation runs and demonstrate that the window expired without withdrawal or appropriate correction.

(b) Exhibit C. To establish, for purposes of CCP section 128.7(b)(2), that the MFL-SAC Opposition Introduction page contains the verbatim “no such authority exists” representation that JKC3H8 v. Colton (2013) 221 Cal.App.4th 468 directly refutes, and that defense counsel filed that representation without disclosing JKC3H8 to the tribunal.

(c) Exhibit D. To establish, for purposes of CCP section 128.7(b)(1) and (b)(3), that the May 6, 2026 O’Connell Reply Declaration introduced a quantified attorney-fee theory for the first time on reply and that Exhibit A to that declaration is a redacted-summary without the foundation required by Evidence Code sections 702, 1271, and 1521; and to establish, for the same purposes, the existence and content of the duplicative-title May 8, 2026 declaration filed in immediate sequence after plaintiff’s May 8, 2026 Motion to Strike (Transaction ID 79429443) and Evidentiary Objections. The exhibits are not offered for the truth of any factual or legal contention asserted within them; they are offered to establish their existence, transmission, filing, and the words they contain.

IV. PROPOSED ORDER LANGUAGE

Plaintiff respectfully proposes that the Court enter the following:

“The Court takes judicial notice under Evidence Code section 452, subdivisions (d) and (h), of Exhibits A through D to Plaintiff’s Request for Judicial Notice in support of Plaintiff’s Motion for Sanctions under Code of Civil Procedure Section 128.7, filed in CGC-25-631802. Judicial notice is taken of the existence, transmission or filing, and content of the noticed items only, and not of the truth of any factual or legal contention asserted within Exhibit C or Exhibit D.”

1 _____

2 **V. SERVICE**

3 This Request and Exhibits A through D are served on Defendant's counsel of record (Mark G.
4 Tapp, Tyler J. O'Connell, Mason Schubert, and Sarah J. Blithe, Porter Scott, A Professional Cor-
5 poration) by electronic mail per CCP section 1010.6 and Cal. Rules of Court, rule 1.21, with a
6 Proof of Service (POS-050) filed contemporaneously with the motion bundle.

7 _____

8 Date: May 21, 2026

By: _____ Dylan Franciscus Rosario, Plaintiff in Pro Per 7624 Melody Drive
Rohnert Park, CA 94928 Tel: 650.488.7510 E: soltrinox@gmail.com

Dated: May 25, 2026



FRANCISCUS DYLAN ROSARIO
Plaintiff, In Pro Per

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DECLARATION OF COMPLIANCE WITH CALIFORNIA CODES, RULES, AND LOCAL PROCEDURES

Plaintiff declares under penalty of perjury under the laws of the State of California (Code Civ. Proc., § 2015.5) that the statements below are true and correct for this request for judicial notice.

#	Authority	Specific requirement	This filing's compliance	Evidence
1	Evid. Code 451–453	Proper categories; neutral descriptions	Items list sources only	Items for notice
2	CRC 3.1306(c)	Request format and item list	Numbered items with citations	RFJN body
3	CRC 3.1113	Organized authority references	TOA or inline cites as used	Body